

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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LAHMEEK WRIGHT,

Plaintiff,

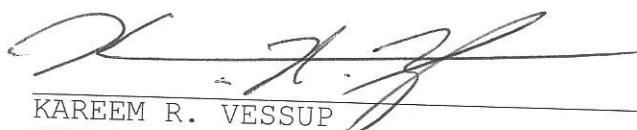
-against-

SUMMONS

Plaintiffs designate
KINGS County as the
place of trial.THE CITY OF NEW YORK, DET. CHARLES STEWART
ON ARREST K11636180, DET. GUILLERMO SUAREZ
ON ARREST K11636180, DET. DOUGLAS CORSO ON
ARREST # K11636180 and SGT. MICHAEL HEALY
ON ARREST # K11636180,The basis of venue
is where the Tort
arose and where
Plaintiff residesThe Tort Arose in:
KINGS COUNTY, NEW
YORKDefendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA. NEW YORK
FEBRUARY 19, 2013
KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.
Attorneys for Plaintiff
LAHMEEK WRIGHT
89-31 161st Street, Suite 705
Jamaica, New York 11432
Our File No. 12-1305TO: Corporation Counsel of
The City of New York
100 Church Street
New York, NY 10007

Det. Charles Stewart

1 Police Plaza, Room 1100
New York, NY 10038

Det. Guillermo Suarez
1 Police Plaza, Room 1100
New York, NY 10038

Det. Douglas Corso
1 Police Plaza, Room 1100
New York, NY 10038

Sgt. Michael Healy
1 Police Plaza, 1100
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
LAHMEEK WRIGHT,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DET. CHARLES STEWART
ON ARREST K11636180, DET. GUILLERMO SUAREZ
ON ARREST K11636180, DET. DOUGLAS CORSO ON
ARREST # K11636180 and SGT. MICHAEL HEALY
ON ARREST # K11636180,

Defendants.
-----X

Plaintiff **LAHMEEK WRIGHT**, by his attorney THE LAW OFFICE OF
KAREEM R. VESSUP ESQ., complaining of the Defendants,
respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **LAHMEEK WRIGHT**
was, and still is, a resident of the County of Kings, City and
State of New York.

2. At all times herein mentioned, Defendant **THE CITY OF
NEW YORK** was, and still is, a municipal corporation duly organized
and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times mentioned,
Defendants **DET. CHARLES STEWART ON ARREST K11636180, DET.
GUILLERMO SUAREZ ON ARREST K11636180, DET. DOUGLAS CORSO ON ARREST
K11636180 and SGT. MICHAEL HEALY ON ARREST # K11636180** were and
are police detectives and sergeants of the Defendant **THE CITY OF
NEW YORK**, and at all times herein were acting in such capacity as
the agents, servants and employees of the Defendant, **THE CITY OF
NEW YORK**.

4. On or about June 27, 2012 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim, in writing and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

6. The Plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law in that a 50h hearing was held on October 4, 2012.

7. That on or about April 13, 2011 at approximately 5:45pm in front of 65 East 96th Street, Brooklyn, NY Defendants **DET. CHARLES STEWART ON ARREST K11636180, DET. GUILLERMO SUAREZ ON ARREST K11636180, DET. DOUGLAS CORSO ON ARREST # K11636180 and SGT. MICHAEL HEALY ON ARREST # K11636180** arrested Plaintiff **LAHMEEK WRIGHT**.

8. Thereafter Plaintiff was brought to the NYPD 67th Precinct followed by Central Booking then was charged and

prosecuted in Kings County Criminal Court under Docket # 2011KN029407 for various charges that Plaintiff was innocent of.

9. Said prosecution continued until on or about March 30, 2012 when the criminal prosecution under Docket # 2011KN029407 ended with an adjournment in contemplation of dismissal.

AS AND FOR A FIRST CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. That on April 13, 2011 at approximately 5:45pm at 65 East 96th Street Brooklyn, NY the defendants jointly and severally in their capacity as police detectives and sergeants, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **LAHMEEK WRIGHT**, restrained him and interfered with his liberty and took him into custody without authority to the 67th Precinct in Kings County and there charged him with various crimes under Criminal Court Docket #2011KN029407.

12. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and released on his own recognizance.

13. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times Plaintiff was aware of his

confinement.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. That on April 13, 2011 at approximately 5:45pm at 65 East 96th Street Brooklyn, NY the defendants jointly and severally in their capacity as police officers, placed Plaintiff **LAHMEEK WRIGHT** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the plaintiff.

16. All of the above actions placed the Plaintiff in imminent fear of physical contact and at no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

17. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "16" with full force and effect as though set forth at length herein.

18. That on April 13, 2011 at approximately 5:45pm at 65 East 96th Street Brooklyn, NY the defendants jointly and severally in their capacity as police officers, did commit a battery upon Plaintiff **LAHMEEK WRIGHT** in that they subjected him to a harmful

or offensive touching.

19. Defendants did not have legal cause to touch the Plaintiff in the manner in which they did. Plaintiff did not consent to the aforementioned contact nor was it privileged by law.

20. Said contact caused the Plaintiff damage and injury.

AS AND FOR A FOURTH CAUSE OF ACTION

21. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "20" with full force and effect as though set forth at length herein.

22. That on April 13, 2011 Plaintiff was arrested and from that time until the end of the criminal prosecution on or about March 30, 2012, Defendants **DET. CHARLES STEWART ON ARREST K11636180, DET. GUILLERMO SUAREZ ON ARREST K11636180, DET. DOUGLAS CORSO ON ARREST # K11636180 and SGT. MICHAEL HEALY ON ARREST # K11636180** deliberately and maliciously prosecuted Plaintiff **LAHMEEK WRIGHT**, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Kings County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

23. The Defendants **DET. CHARLES STEWART ON ARREST K11636180, DET. GUILLERMO SUAREZ ON ARREST K11636180, DET. DOUGLAS CORSO ON ARREST # K11636180 and SGT. MICHAEL HEALY ON ARREST #**

K11636180, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

24. The commencement of these criminal proceedings under Docket No. 2011KN029407 was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

25. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution.

AS AND FOR A FIFTH CAUSE OF ACTION

26. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "25" with full force and effect as though set forth at length herein.

27. Defendants **DET. CHARLES STEWART ON ARREST K11636180**, **DET. GUILLERMO SUAREZ ON ARREST K11636180**, **DET. DOUGLAS CORSO ON ARREST # K11636180** and **SGT. MICHAEL HEALY ON ARREST # K11636180** were at all times relevant, duly appointed and acting officers of the New York City Police Department.

28. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances,

regulations, policies, customs and usage of the State of New York and/or City of New York.

29. Plaintiff **LAHMEEK WRIGHT** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

30. That on April 13, 2011 at approximately 5:45pm at 65 East 96th Street Brooklyn, NY the Defendants, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **LAHMEEK WRIGHT** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

31. That on April 13, 2011 at approximately 5:45pm at 65 East 96th Street Brooklyn, NY the Defendants, jointly and severally did place Plaintiff **LAHMEEK WRIGHT** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

32. That on April 13, 2011 at approximately 5:45pm at 65 East 96th Street Brooklyn, NY, the Defendants, jointly and

severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and interfered with his liberty and then took him into custody to the 67th Precinct in Kings County and there charged him with the crimes on Docket No. 2011KN029407. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

33. That beginning on or about April 13, 2011 and continuing until the end of the aforementioned criminal prosecution on or about March 30, 2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff **LAHMEEK WRIGHT**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so and without a reasonable suspicion of probable cause. Plaintiff was kept in custody by defendants for more than 24 hours until he was arraigned and released on his own recognizance.

34. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution.

35. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

36. The direct and proximate results of the Defendants' acts are that the plaintiff was forced to endure pain and suffering, all to her detriment. She has suffered severe and permanent injuries of a psychological nature.

AS AND FOR A SIXTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "36" with full force and effect as though set forth at length herein.

38. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its

police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only make an arrest based on probable cause

39. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of **THE CITY OF NEW YORK** are not to arrest individuals such as the Plaintiff here where probable cause is lacking.

40. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that Probable cause must be present before an individual such as Plaintiff herein can be arrested.

41. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused that police officers to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff, commit an assault/battery to her person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

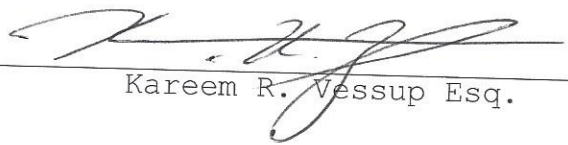
AS AND FOR A SEVENTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and re-alleges all of the

allegations contained in paragraphs "1" through "40" as if set forth at length herein.

43. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.


Kareem R. Vessup Esq.

VERIFICATION

Kareem R. Vessup, affirms under penalty of perjury:

That affirmant is the attorney for the plaintiff LAHMEEK WRIGHT in the action within; that affirmant has read the foregoing:

SUMMONS AND COMPLAINT

and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes it to be true and the reason that this verification is not made by plaintiff instead of affirmant is that plaintiff is not presently in the county where the attorney for the plaintiff have their office.

Affirmant further says that the source of affirmant's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from investigations made on behalf of said plaintiff.

DATED: JAMAICA, NEW YORK
FEBRUARY 19, 2013


Kareem R. Vessup Esq.